

26STCV02902 26STCV02902

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-21

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Case Number: 26STCV02902 Hearing Date: July 21, 2026 Dept: 512

HEARING DATE: Tues., July 21, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Liu

v. Xiao, et al. COMPL. FILED: 01-28-26

CASE NUMBER: 26STCV02902

NOTICE: OK

PROCEEDINGS: MOTION

FOR DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION AND APPOINTMENT OF REFEREE

MOVING PARTY: Plaintiff

Chenglu Liu

RESP. PARTY: None

MOTION FOR DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION AND APPOINTMENT
OF REFEREE

(CCP § 872.720)

TENTATIVE RULING:

Plaintiff Chenglu Liu's unopposed Motion

for Default Interlocutory Judgment of Partition and Appointment of Referee is GRANTED.

Status Conference Re: Partition is

scheduled for October 12, 2026 at 8:30 a.m. in Department 512 of the Stanley Mosk Courthouse.

Moving party is ordered to give notice
to all parties including the defaulted parties.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of July 17, 2026 ☐ Late ☒
None

REPLY: None
filed as of July 17, 2026 ☐
Late ☒ None

ANALYSIS:

I.
Background

On January
28, 2026, Plaintiff Chenglu Liu ("Plaintiff") filed a Verified Complaint for
Partition of Real Property against Defendants Na Xiao ("Xiao"), Honghua Shang
("Shang"), Puchun Cai ("Cai") and Does 1-10. (Verified Compl., p. 1.)

On
February 9, 2026, the Court found the instant case and Case No. 26STCV02922 to
be related. (2/9/26 Order.) The Court ordered the instant case to be the lead
case. (2/9/26 Order.)

On March

19, 2026, Xiao, proceeding pro se, filed an Answer.

On April

3, 2026, Plaintiff filed a Notice of Recording of Pendency of Action Pursuant to Code of Civil Procedure section 405.20 (Lis Pendens).

On April

8, 2026, default was entered against Shang and Cai.

On April

30, 2026, Plaintiff filed the instant Motion for Default Interlocutory Judgment of Partition and Appointment of Referee (the "Motion").

On May

12, 2026, Plaintiff filed a declaration made by Xiao attesting to Xiao's support and consent of the Motion.

On May 15,

2026, Plaintiff filed an Amended Proposed Judgment.

On July

9, 2026, the Court continued the hearing on the Motion and ordered Plaintiff give notice. (7/9/26 Order.)

On July

14, 2026, Moving party gave notice of the continued hearing.

To date, no Opposition to the Motion has been filed.

II.

Legal

Standard

" '[P]artition' is 'the procedure for segregating and terminating common interests in the same parcel of property.' " (14859 Moorpark Homeowner's Association v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1404-1405.) It is a " 'remedy much favored by the law. The original purpose of partition was to

permit cotenants to avoid the inconvenience and dissension arising from sharing joint possession of land. An additional reason to favor partition is the policy of facilitating transmission of title, thereby avoiding unreasonable restraints on the use and enjoyment of property.” ’ ”

(Cummings v. Dessel (2017) 13 Cal.App.5th 589, 596.)

Code of Civil Procedure section

872.720, subdivision (a) provides: “If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.” (Code Civ. Proc., § 872.720, subd. (a).)

Code of Civil Procedure section 872.210,

subdivision (a) provides: “A partition action may be commenced and maintained by any of the following persons: (1) A coowner of personal property. (2) An owner of an estate of inheritance, an estate for life, or an estate for years in real property where such property or estate therein is owned by several persons concurrently or in successive estates.”

(Code Civ. Proc., § 872.210, subd. (a).) Code of Civil Procedure section 872.210, subdivision (b) states that “an action between spouses or putative spouses for partition of their community or quasi-community property or their quasi-marital interest in property may not be commenced or maintained under this title.”

Code of

Civil Procedure section 872.230 sets forth the requirements for a complaint seeking partition.

Code of Civil Procedure section 872.250

provides that “[i]mmediately upon filing the complaint, the plaintiff shall record a notice of the pendency of the action in the office of the county recorder of each county in which any real property described in the complaint is located.” (Code Civ. Proc., § 872.250, subd. (a).) “From the time of filing the notice for record, all persons shall be deemed to have notice of the pendency of the action as to the property described in the notice.” (Code Civ. Proc., § 872.250, subd. (d).)

III.

Discussion

The Motion, and underlying action, seeks a partition of a residential duplex located at 952 E 9th St, Pomona, CA 91766, Assessor's Parcel Number 8333-004-010 (the "Property"). (Motion, p. 5; Verified Compl., p. 1.) Plaintiff contends that Plaintiff owns a 33.33 percent interest in the Property and Defendants collectively hold 66.67 percent interest in the Property. (Motion, p. 5.)

A.

Interlocutory

Judgment of Partition

The Motion is granted. The legal requirements for an interlocutory judgment of partition have been met.

The law is that "an interlocutory judgment in a partition action is to include two elements: a determination of the parties' interests in the property and an order granting the partition." (Summers v. Superior Court (2018) 24 Cal.App.5th 138, 143, as modified June 27, 2018].)

First, where the pleadings do not raise any question regarding the ownership of the property, there is no factual issue for the Court to determine. (See, e.g., Brown v. Brown (1950) 98 Cal.App.2d 142, 144-145 [finding in partition action that trial court erred in ruling on parties' respective interests in real property because the pleadings did not raise the issue].)

Here, ownership of the Property is not at issue since Shang and Cai are default, Xiao filed an Answer agreeing to the allegations in the Verified Complaint, Xiao filed a declaration in support of the Motion, and the title history shows as follows: initially, the Property's title constituted an undivided 2/3 interest between Liu and Xiaoyuan Yang as community property between husband and wife, and an undivided 1/3 interest between Shang and Cai as community property between husband and wife, as tenants in common; thereafter, a quitclaim deed by Liu granted Xiao a 1/3 interest in the Property. (Motion, Thomas Decl., ¶ 2-5, Exhs. 1-4.)

Plaintiff consents to the entry of an interlocutory judgment of partition granting ownership of the Property as follows: 33.33 percent to Plaintiff and 66.67 percent to Defendants allocated

as follows: 33.33 percent to Xiao and 16.67 percent to Shang and 16.67 percent to Cai. (Motion, p. 6; Summers, supra, 24 Cal.App.5th at p. 143.)

Second, Plaintiff, who is a tenant in common, is entitled to partition. “ ‘A co-owner of property has an absolute right to partition unless barred by a valid waiver.’ ” (Orien v. Lutz (2017) 16 Cal.App.5th 957, 962, citing Code Civ. Proc., § 872.710, subd. (b).) As such, “if the party seeking partition is shown to be a tenant in common, and as such entitled to the possession of the land sought to be partitioned, the right is absolute.” (Bacon v. Wahrhaftig (1950) 97 Cal.App.2d 599, 603.) Indeed, “ ‘the right to partition is absolute, and cannot be denied, “either because of any supposed difficulty, nor on the suggestion that the interest of the cotenants will be promoted by refusing the application or temporarily postponing action.” ’ ” (Priddel v. Shankie (1945) 69 Cal.App.2d 319, 325.)

Here, the Verified Complaint and the exhibits attached to the Motion demonstrate Plaintiff and Defendants are tenants in common. (See Motion, Thomas Decl., Exhs. 1-4; Verified Compl., ¶ 9, Exh. 1.) The Verified Complaint alleges that “Plaintiff has never waived the right to partition in writing or in any other manner.” (Verified Compl., ¶ 25.) Plaintiff has not waived the right to partition. (Summers, supra, 24 Cal.App.5th at p. 143.)

“[T]he manner of partition—i.e., a physical division or sale of the property—is to be decided when or after the parties’ ownership interests are determined, but not before.” (Id.; see Code Civ. Proc., § 872.720, subd. (a) [providing that the “manner of partition” can be decided in the judgment “unless it is to be later determined”].)

The Court need not determine the manner of partition at this time given the appointment of a referee discussed below.

Based on the foregoing, the Court finds the elements for an interlocutory judgment have been met. As such, the Court grants the motion for default interlocutory judgment of partition of the Property.

B.

Appointment

of Partition Referee

The law in a partition action is that:

“The court shall appoint a referee to divide or sell the property as ordered by the court.” (Code Civ. Proc., § 873.010, subd. (a).) In appointing a referee:

“The court may: . . . Instruct the referee [and] [f]ix the reasonable compensation for the services of the referee and provide for payment of the referee’s reasonable expenses.” (Code Civ. Proc., § 873.010, subds. (b)(2)-(b)(3).)

“The referee or any party may, on noticed motion, petition the court for instructions concerning the referee’s duties.” (Code Civ. Proc., § 873.070.)

Additionally, the referee has a broad range of authority over the Property as provided in Code of Civil Procedure section 873.060, which provides that “[t]he referee may perform any acts necessary to exercise the authority conferred by this title or by order of the court.”

Code of Civil Procedure section 873.050

provides, “[n]one of the following persons shall be appointed a referee under this title: (a) A clerk or deputy clerk of the court. (b) A former or present partner or employee of the judge. (c) A relative within the third degree of the judge or the judge’s spouse or the spouse of such a relative. (d) An owner of any interest in the property that is the subject of the action.” (Code Civ. Proc., § 873.050.)

Plaintiff requests that this Court

appoint a referee, Matthew L. Taylor (“Taylor”). (Motion, pp. 10-12.) Plaintiff presents evidence that Plaintiff has located and confirmed the availability of Taylor to act as the referee in this case. (Motion, Taylor Decl.) “Taylor has been an attorney since 1995 with a practice in real estate and receiverships, with a particular focus on partition referee work.” (Motion, pp. 10-11, Taylor Decl. ¶¶ 2-5.) The Motion provides Taylor’s resume, which indicates Taylor’s appointment as a receiver in multiple other cases and appointment as a partition referee in multiple cases. (Motion, pp. 10-11, ¶ 3, Exh. 13.) Further, “Taylor also served as in-house counsel for a receiver for 8 years before starting his own law practice where he worked on another 15 receivership cases.” (Motion, p. 11, Taylor Decl. ¶ 2.) Taylor estimates that the total cost of most partitions is approximately \$14,000. (Motion, p. 11, Taylor Decl., ¶ 9.)

In a declaration accompanying the

Motion, Taylor indicates that he is ready, willing and able to accept Plaintiffs’ nomination as referee. (Motion, Taylor Decl., ¶ 8.) Taylor

indicates that he has no personal or professional affiliation with Plaintiff or Plaintiff's attorney of record. (Motion, Taylor Decl., ¶¶ 10-11.)

Accordingly, the Court finds Taylor is well-qualified to handle the referee appointment in this case.

C.

Instructions
for Partition Referee

The referee shall be authorized to determine the manner of partition, and the referee shall prepare a report of the referee's proceedings to this Court for approval. (Code Civ. Proc., §§ 873.210, 873.280.)

Plaintiff requests the following instructions be given to the referee:

If the referee determines that the Property should be sold, the referee shall be authorized to proceed. After the referee has incurred any costs of repairs or other expenses necessary to prepare the Property to be sold, which shall be recouped by the referee following the sale, the Property shall be sold on an "as-is" basis, without any warranty, express or implied, except as to title. The sale is subject to current taxes, covenants, conditions, restrictions, reservations, rights, rights of way, and easements of record. Any encumbrances of record shall be satisfied out of the proceeds of sale, provided that if any such encumbrance is the result of judgments against any individual owner or if any voluntary liens were incurred for the benefit of any individual owner, the costs of such satisfaction shall be charged against the proceeds of sale that would otherwise be payable to said owner.

In the event that the referee determines that a sale is most appropriate, the Property shall be listed and sold on the open market through a realtor placing the Property on the MLS. The Listing Agreement shall not provide for any blanket offer of the compensation to any buyer's agent on any Multiple Listing Service in accordance with recent judicial rulings on this topic. Real property taxes, rents, operating and maintenance expenses, and premiums on insurance acceptable to the purchaser shall be prorated as of the date of recording the conveyance. The costs and expenses of the escrow shall be divided between the seller and the buyer in conformity with the customs and

practices prevalent in Los Angeles County. The escrow shall close as soon as is reasonably possible after the confirmation of any sale by the Court. In the event that the referee proceeds with a sale, Plaintiff proposes that Defendants and any other persons in possession of the Property be ordered by this Court to vacate the Property within thirty (30) days of the date of service of an interlocutory judgment granted by this Court, and to remove all personal effects from the Property during this time. Note that, as a practical matter, the partition referee would prefer the Property to be occupied to avoid issues with break ins, leaks, etc. so long as the occupants are cooperative with the partition process. If Defendants and any other persons in possession of the Property fail to so vacate and/or fail to remove all personal effects from the Property, the costs and expenses reasonably incurred to effectuate the implementation of these move-out provisions of the order shall be charged to Defendants' portions as to any distribution relating to the partition of the Property. Said costs and expenses shall include, but not be limited to, referee's fees, attorneys' fees, moving costs, the costs of any writ of execution provided to the Los Angeles County Sheriff, and any consequential expenses attributable to delays in partitioning the Property.

The Court shall retain jurisdiction of this matter to confirm the partition of the Property, to consider the issuance of such orders as requested by the referee or either of the parties, to review the reports of the referee, to issue whatever additional orders as may be required to carry out the partition of the Property, and to consider whether adjustments to the distribution of the net proceeds to the parties are equitable and appropriate.

(Motion, pp. 11-13.)

The Court finds these instructions reasonable and appoints Taylor referee with the abovementioned instructions for partition of the Property.

Thus,
the Motion is GRANTED.

The
Motion for Interlocutory Judgment of Partition is GRANTED. The Motion's request for appointment of Matthew L. Taylor as partition referee is GRANTED.

D.

Conclusion

& Order

For the foregoing reasons, Plaintiff Chenglu Liu's unopposed Motion for Default Interlocutory Judgment of Partition and Appointment of Referee is GRANTED.

Status Conference Re: Partition is scheduled for October 12, 2026 at 8:30 a.m. in Department 512 of the Stanley Mosk Courthouse.

Moving party is ordered to give notice to all parties including the defaulted parties.